Colegio International de Caracas

STUDY GUIDE

SAMUN 2026

UNSC

Letter from the Chair

Distinguished delegates.My name is Nkazimulo Maseko, and I am honored to serve as your Chair for this session ofthe United Nations Security Council.

As we address the critical agenda items of the Indo-Pakistani Conflict of 1998-1999 and the rise of Transnational Terrorist Organizations in the Middle East and Africa in 1998, my role is to moderate our deliberations with strict impartiality, order, and fairness. I am committed to ensuring that every delegation has the opportunity to participate actively in these high-stakes discussions.

My primary objective is to foster a constructive environment where diplomatic dialogue and international cooperation prevail. Together, we must strive to draft resolutions that not only reflect the diverse interests and commitments of your respective nations but also uphold the mandate of this Council to maintain global peace and security. I look forward to a productive session.

Letter from Co-chair

Fellow delegates, my name is Marcos Brook, and I am extremely pleased to be your Co-chair for this session of the United Nations Security Council.

Committee Introduction

The **United Nations Security Council (UNSC)** is one of the six main organs of the **United Nations (UN)** .Theprimaryresponsibilityofthe UNSC is to **maintain and establish international peace and security worldwide** .After World War II, it was created as the commanding authority of the UN's institutional global order, designed to address the systemic failures of the **League of Nations**. It is the **only UN body** with the executive authority to pass **legally binding resolutions** on all 193 member states under international law.

Structure: The council consists of **15 members. The Permanent Five (P5)** ,which are: **the United States, the United Kingdom, France, China, and Russia** ,haveapermanent seat on

the council and possess the power to **veto** anybinding agreement. The other ten are **non-permanent members** elected for **2-year terms.**

Jurisdiction: The council operates under **Chapter VI and VII of the UN Charter**. **Chapter VI** addresses the **peaceful settlement of disputes** through mediation, negotiation, and arbitration, all of which are legally **non-binding.** Under **Chapter VII**, the UN Security Council is given the power to use **strict measures**, particularly **economic sanctions, travel bans, arms embargoes, and authorized military force.**

We hope you find this background guide useful in your preparation for the conference. This background guide is meant to introduce delegates to the topic that will be discussed in committee and provide guidance as delegates begin their research. Delegates are strongly encouraged to research the positions, views, and opinions of their Member States as well as relevant regional and international frameworks, past resolutions, and organizations and initiatives. Each delegation will submit a position paper for the committee.

Delegates must turn in a hard copy of their papers before the start of the first committee session to their Chairs. Papers may be emailed to "masekon@ciccaracas.com.ve" and "brookm@ciccaracas.com.ve". We look forward to seeing you all in committee.

Sincerely,
Nkazimulo Maseko Chair
Marcos Brook Co-Chair

COMITEEE OVERVIEW

Introduction

The United Nations Security Council's (UNSC) primary duty is to maintain peace and security, and to act when they're encroached upon. When a concern arises, the UNSC initially encourages settlement upon peaceful means. Should the dispute lead to hostility the UNSC's new objective is to reach an amicable agreement between those involved. When these options aren't viable, the Council is authorized to use enforcement measures, such as: economic sanctions, blockades, severance of diplomatic relations; even collective military action.2 Ultimately, the scope of response is meant to hold those responsible accountable for their actions and minimize the impact of those caught in the crosshairs.

In terms of procedure, the Security Council operates with unique powers, most notably the **veto power**, held by the five permanent members, allowing them to block any substantive resolution. This creates both a powerful mechanism for decisive action and a limitation when consensus cannot be reached.

Committee Mandate

The UN Charter called for the creation of six main organs for the function of the UN. Amongst them was the Security Council, in which the Charter gives primary responsibility of maintaining international peace and security. The Charter bestows the UNSC four purposes: maintain peace and security, develop friendly relations between nations, cooperate in solving international problems and promote respect for human rights; and be a hub for reconciling the actions of nations. It is the only organ that makes decisions Member States are obligated to follow. The Council's mandate is clear: to respond rapidly and effectively to threats to international peace. However, its actions are shaped by political realities, state sovereignty, and the need for cooperation among major powers. Delegates must consider both the legal authority and political constraints of the UNSC when proposing solutions.

Country Matrix

Country
Bahrain
Brazil
China
Costa Rica
France
Gambia
Japan
Kenya
Portugal
The Russian Federation
Slovenia
Sweden
United Kingdom
United States

Topic A: The Indo-Pakistani Conflict of 1998-1999

History of the Topic

The Indo-Pakistani conflict of 1998-1999 did not start with nuclear tests or Kargil. It has its roots in the partition of British India in 1947, one of the most bloody and complicated episodes of recent history. When Britain decided to leave India, it was divided into two roughly equal parts: India, which became a secular state, and Pakistan, which became a Muslim state. This division led to an enormous number of people returning to their "own" countries and hundreds of thousands of killings.

The princely state of Jammu and Kashmir became a flashpoint in the dispute. As the majority of the population were Muslim, but the ruler was a Hindu, he initially sought to remain independent. However, he soon changed his mind and agreed to join Pakistan, leading to Indian troops entering Kashmir. Thus, the first Indo-Pakistani War broke out. Almost immediately after, the UN Security Council created the UN Military Observer Group for India and Pakistan (UNMOGIP), which was one of the first peacekeeping missions. The Security Council adopted a resolution calling for a ceasefire and a plebiscite to determine Kashmir's future, which neither side accepted.

Another armistice was signed in 1949, and the Line of Control (LoC) was established, which was supposed to serve as the border between the two countries. However, the LoC was only intended as a temporary measure, and in 1972, the Simla Agreement was signed, which came into force after the 1971 War. According to this document, Jammu and Kashmir were formally divided between India and Pakistan. Nevertheless, neither side was willing to acknowledge it as a permanent boundary.

In 1965, another war broke out between India and Pakistan, which once again ended in a draw. However, the conflict between these two states took a new turn in 1971, when the Second Indo-Pakistani War began. This year also marked Pakistan's defeat in Bangladesh, which weakened Pakistan and allowed India to increase its pressure on Islamabad. The Simla Agreement was signed in 1972, which stipulated that both countries would accept the LoC and settle all disputes bilaterally and peacefully. Thus,Pakistan's attempts to hold referendums in the regions under its control and India's attempts to hold referendums in the regions under its control failed.

In the 1980s and 1990s, the conflict between Pakistan and India flared up again, while Pakistan began to prepare terrorist attacks on India. In 1989, an armed uprising began in Indian-administered Kashmir. India accuses Pakistan of financing and arming insurgents, while Pakistan accuses India of committing atrocities in Jammu and Kashmir. Both countries have built their domestic political rhetoric around the dispute over Kashmir.

At the end of the 20th century, both countries acquired nuclear weapons, although neither side officially announced this. India has had a nuclear program since the 1970s and tested a nuclear bomb in 1974. Pakistan also has an indigenous nuclear program and possesses nuclear weapons. In addition, both countries adhere to a policy of nuclear ambiguity, formally denying possessing such weapons, but not officially renouncing them. In May 1998, India announced its nuclear tests, which meant that New Delhi had crossed the threshold of

becoming a nuclear state. Subsequently, Pakistan conducted nuclear tests in response to India's tests, and both countries officially announced their nuclear status.

India and Pakistan became the fifth and sixth nuclear states in the world, and the international community has consistently condemned these tests. On June 6, 1998, the UN Security Council issued a unanimous resolution condemning these tests. The resolution demands that India and Pakistan abandon their nuclear ambitions, stop their nuclear tests, adhere to the Non-Proliferation Treaty and the Comprehensive Test Ban Treaty, and resume dialogue on all issues, including Kashmir. However, despite this resolution, the situation between India and Pakistan was destined to worsen.

Currently, the most pressing issue between India and Pakistan is the territorial dispute. In early May 1999, Indian troops found Pakistani soldiers and militants inside Indian-administered Jammu and Kashmir. Pakistan's troops occupied strategic points in the disputed region of Kargil. Thus, India beganOperation Vijay, which aimed to expel Pakistani troops from Indian territory. The Kargil conflict between India and Pakistan lasted from May to July 1999. It was a high-altitude mountain war fought with a large number of cannons and aircraft, as well as long-range duels. India accused Pakistan of violating the LoC and aggression, while Pakistan denied Pakistan's involvement in Kargil, claiming that militants had crossed the border.

The conflict between India and Pakistan ended only after enormous diplomatic pressure from the international community, including the United States. Thus, Pakistan agreed to withdraw its troops from Indian-administered Kashmir, and after three weeks of fighting, Indian troops managed to capture Tiger Hill, which was strategically the most advantageous point for the Pakistani army. On July 14, 1999, declaredOperation Vijay successful and formally ended hostilities on July 26, 1999. The territorial dispute between India and Pakistan continues to be one of the most dangerous sources of tension in international relations.

Current Situation

At the end of 1999, the conflict between India and Pakistan was essentially localized. The LoC was returned to Pakistan, although both countries continue to retain their claims to Kashmir. In addition, the governments of both countries were forced to admit that a war could erupt even when both countries possessed nuclear weapons.

India emerged from the Kargil conflict strengthened, ready to wage further territorial wars against Pakistan. After the Kargil conflict, India allocated more funds to the development of new weapons systems and paid great attention to protecting its borders. India continued to

position itself as the sole legitimate guarantor of security in South Asia. In addition, New Delhi did not recognize any external authority to judge the dispute between Islamabad and New Delhi.

Pakistan, for its part, suffered greatly from the Kargil conflict. Political scandals broke out in Pakistan, and the military command suffered great damage. In addition, in October 1999, Pakistan's prime minister was removed from office in a coup d'état staged by General Musharraf. Thus, Pakistan finds itself in a situation of great instability, which is unlikely to allow Islamabad to control the situation in the short term.

It is also worth mentioning that the international community was unable to prevent another war between India and Pakistan. The UN Security Council, which is the main authority for maintaining international peace and security, was unable to prevent the Kargil conflict. Although Resolution 1172 was adopted unanimously, it remains controversial whether it actually prevented further hostilities. At the same time, the Kashmir issue has continued to fuel political conflicts between India and Pakistan.

Discussion of the Topic

According to the SimlaAgreement, disputes between India and Pakistan should be resolved bilaterally. India doesnot recognize Kashmir as an international issue, while Pakistan considers Kashmir amatter for international arbitration. Thus, the most controversial question before the Security Council is whether it should interfere in a dispute between two UN members.

India does not want any kind of international interference in the dispute between India and Pakistan, while Pakistan wants the UN to oversee the dispute settlement process. If the Council decides to intervene, it will have to choose between accepting India's position on bilateral negotiations or intervening directly in the dispute.

Nuclear Proliferation

India and Pakistan have become nuclear powers despite being signatories to the Non-Proliferation Treaty. In addition, neither India nor Pakistan recognize their status as nuclear powers. Thus, the question of India's and Pakistan's nuclear programs remains controversial. The international community, particularly the UN Security Council, has to decide whether to impose sanctions on both countries for their actions or support bilateral negotiations between Delhi and Islamabad.

Nuclear Deterrence

Many analysts believe that nuclear weapons hinder disarmament and peace talks between India and Pakistan. At the same time, nuclear weapons are a deterrent against further military aggression. One of the most controversial questions before the Security Council is whether nuclear weapons prevent regional conflicts between India and Pakistan or encourage them to wage wars and then stop because of the danger of a nuclear confrontation.

The Legality of the Kargil Infiltration

India asserts that Pakistan violated the LoC, while Pakistan denies this claim. India claims that Pakistan committed an act of aggression by facilitating or directly participating in the infiltration of Pakistani troops. Pakistan claims that the LoC is not an international boundary and that Pakistan has the right to take actions on the territory of disputed Kashmir. The Council has to decide whether Pakistan committed an act of aggression by violating the LoC and whether it should condemn this act without commenting on the status of Kashmir.

Block Positions

Argentina	In 1998, Argentina was committed to nuclear non-proliferation and peaceful dispute settlement, and viewed the Indian and Pakistani tests as a threat to the global non-proliferation regime. Likely to have supported resolution 1172, and urged India and Pakistan to desist from further testing, but opposed punitive measures that could inflame South Asian security.
Bahrain	To Bahrain, regional stability and sovereignty were of utmost importance. Likely to have supported calls for restraint and dialogue between India and Pakistan, but have avoided measures perceived as interference in the internal dispute. Would have favoured diplomatic over sanction-based approaches.
Brazil	Brazil promoted disarmament,

	multilateralism and peaceful dispute settlement. In 1998, likely to have condemned the nuclear tests, but urged India and Pakistan to resume negotiations. Supported confidence-building measures and opposed military intervention in Kashmir.
Canada	Canada was a strong supporter of nuclear non-proliferation and arms control. Likely to have condemned the Indian and Pakistani tests, and urged both countries to sign the Comprehensive Nuclear-Test-Ban Treaty and adhere to the Non-Proliferation Treaty. During the Kargil crisis, would have supported diplomacy and restraint.
China	China had strategic interests in South Asia and maintained a close relationship with Pakistan, sharing a border with both countries and with India. Likely to have supported restraint and dialogue, but resisted sanctioning measures that isolated Pakistan, and opposed outside interference in the Kashmir dispute.
Costa Rica	Costa Rica supported pacifism and the peaceful settlement of disputes. Likely to have condemned nuclear testing and called for immediate de-escalation. Supported UN good offices, confidence-building measures

	and a negotiated solution to the Kashmir issue.
France	As a permanent member of the Security Council, France promoted nuclear restraint and regional stability, and supported resolution 1172. Likely to have urged India and Pakistan to refrain from further testing. Favourable to diplomatic pressure and restrictions on the transfer of nuclear and missile technology, but not to sanctioning measures.
Gambia	Gambian interests were in peaceful settlement of disputes and sovereignty, and in support for developing states. Likely to have called for restraint by India and Pakistan, and opposed measures seen as unfairly punishing developing countries. Supported dialogue and UN mediation.
Japan	Having suffered the effects of nuclear weapons, Japan was one of the strongest opponents of testing. Likely to have condemned the 1998 tests, and urged India and Pakistan to join the CTBT and NPT, and to take diplomatic measures to reduce nuclear risks and prevent escalation.

Kenya	Kenya supported multilateral cooperation and the peaceful settlement of disputes. Likely to have called for restraint, and urged India and Pakistan to engage in dialogue. Would have supported Security Council involvement, but have avoided taking sides in the Kashmir dispute.
Malaysia	Malaysia supported the rights of Muslim populations, and peaceful resolution of disputes. May have expressed concern about the human-rights situation in Kashmir, and supported international attention to the issue. Supported sovereignty, and would likely have opposed military intervention.
Nambia	Namibia supported decolonization, self determination, and peaceful settlement. May have sympathized with calls for self determination for the people of Kashmir, but likely have focused on dialogue, restraint and international law, rather than blame.
Netherlands	The Netherlands supported adherence to international law, human rights, and nuclear non-proliferation. Likely to have condemned the tests, and supported

	diplomatic pressure on India and Pakistan to desist from further testing, and to engage in dialogue.
Portugal	Supported multilateral approaches to international law and peaceful dispute settlement. Likely to have supported resolution 1172, and to have called for restraint and dialogue, and urged adherence to nuclear non-proliferation treaties. Would have supported UN involvement in preventing escalation of the Kargil conflict.
Russian Federation	Russia had close defence, political and strategic ties with India. Likely to have supported de-escalation and dialogue, but resisted efforts seen as undermining India's security, and opposed harsh sanctions.
Slovenia	Slovenia supported international law, human rights and peaceful conflict resolution. Likely to have condemned the nuclear tests, and supported diplomatic efforts to prevent war. Would have supported confidence-building measures and UN good offices.
Sweden	Sweden promoted disarmament, adherence

	to international law and peaceful dispute settlement. Likely to have condemned the nuclear tests, and urged both states to join arms-control agreements, and to engage in dialogue on Kashmir. Supported human-rights considerations and civilian protection.
United Kingdom	The United Kingdom supported nuclear non-proliferation and regional stability. As a permanent member of the Security Council, supported resolution 1172, and diplomatic engagement with both India and Pakistan. Supported restrictions on nuclear assistance, and called for dialogue.
United States	The United States was concerned about nuclear proliferation, and the risk of war between India and Pakistan. Imposed sanctions on both countries after the 1998 tests, and promoted restraint. Took a leading role in direct diplomacy with Pakistan during the Kargil conflict, resulting in Pakistan agreeing to withdraw troops from the Indian side of the Line of Control.

Relevant UN Treaties, Resolutions, and Reports

• United Nations Charter — 1945 Essay

Adopts the UN Charter, which states that the UN Security Council is primarily responsible for maintaining international peace and security. It covers peaceful settlements (Chapter VI) and enforcement measures (Chapter VII).

• Treaty on the Non-Proliferation of Nuclear Weapons (NPT) — 1968

The central international treaty aimed at preventing the proliferation of nuclear weapons and promoting disarmament.

• Simla Agreement — 1972

An agreement between India and Pakistan binding both countries to solve their differences peacefully and respect the Line of Control.

• Comprehensive Nuclear-Test-Ban Treaty (CTBT) — 1996

A treaty that prohibits all nuclear explosions. It has not entered into force.

• UN Security Council Resolution 1172 (6 June 1998)

Condemned India and Pakistan's nuclear tests, called on both countries not to conduct further tests, urged them to adhere to the NPT and CTBT, and called for consultations on outstanding issues, including Kashmir.

Previous Attempts to Solve the Problem

Thefirstmajor attemptto manage the Indo-Pakistani conflict was the Simla Agreement of 1972. India and Pakistan agreed to settle their differences peacefully and through bilateral negotiations after the 1971 war. The agreement also defined the Line of Control in Kashmir. The agreement helped to cool tensions after the war, but it failed to solve the dispute over Kashmir. Since the agreement left the dispute settlement fully to bilateral negotiations, there was no mechanism to take care of this dispute if negotiations failed. Future solutions should take note of the mechanisms that will ensure bilateral negotiations continue to take place and that the United Nations can help in times of crisis.

Another important attempt to manage the conflict was the creation of the United Nations

Military Observer Group in India and Pakistan (UNMOGIP) in 1948. UNMOGIP was mandated to oversee the ceasefire in Kashmir after the first Indo-Pakistani war and monitor the ceasefire line for violations. While the mandate helped to maintain a ceasefire line, it could not settle the political dispute that resulted in the war. The delegates should consider whether a monitoring mechanism would help manage the disputes along the Line of Control.

The most significant Security Council action before and during this crisis was the adoption of resolution 1172 by acclamation on 6 June 1998. After India and Pakistan conducted nuclear tests in May 1998, the council condemned the tests and demanded that both states halt all tests, stop developing nuclear-weapons delivery systems and ballistic missiles, and urge states not to provide technology that could contribute to the programs. The resolution marked a near-unanimous agreement that South Asia was not a suitable region for nuclear testing. However, the resolution did not impose sanctions, set up a monitoring mechanism, or a mediation process. Consequently, India and Pakistan did not become a party to the NPT or CTBT, and a Kargil conflict erupted within a year of the adoption of this resolution. Future proposals should consider implementing more effective verification measures, controlling exports, and encouraging the states to embrace arms-control treaties.

Finally, the US attempted to manage the Kargil conflict through diplomatic channels. On 4 July 1999, President Bill Clinton met Pakistani Prime Minister Nawaz Sharif in Washington. After the talks, Pakistan agreed to withdraw its troops from the Indian side of the Line of Control. The talks helped to end the immediate crisis, but they did not settle the Kashmir dispute or establish a permanent crisis-management system. The talks also raised the question of the relevance of the Security Council as a conflict-management organ because the involvement of one superpower seemed to overshadow the actions of the council. The delegates should consider how the Security Council can help de-escalate conflicts without the intervention of major powers.

Objectives of the committee

The main goal of the Security Council for topic A is to reduce tensions between India and Pakistan, which took place in 1998 when both countries tested nuclear weapons and again in 1999 during the Kargil conflict. Their purpose is to stop new military actions along the Line of Control and prevent global nuclear war. Delegates should examine ways to accomplish this

task, such as endorsing monitoring of the Line of Control, encouraging bilateral and international negotiations, or imposing restrictions and penalties on both states in accordance with Resolution 1172. Nevertheless, it is vital to recognize the need to respect India's position concerning bilateral negotiations based on the Simla Agreement and Pakistan's desire for international intervention. By analyzing the outcomes of failed diplomatic initiatives and successful treaties, the delegates of the Security Council should formulate viable proposals, which would respect the United Nations Charter and relevant international law and help achieve international stability and peace.

Guiding Questions

- Should the Security Council develop a universal definition of terrorism?
- What actions should be categorized as terrorism and what actions should not be considered terrorism?
- Do states have an obligation not to allow their territory to be used for purposes of terrorism by terrorist organizations?
- When may a state take military action against terrorist camps in another state?
- Should the Security Council approve collective military actions, or should it focus on law enforcement and economic sanctions?
- How might the states share intelligence with each other in order to carry out effective surveillance, while at the same time preserving national security and civil liberties?
- How might the Council ensure that measures taken do not violate human rights?
- What might be the role of developmental aid and state building in the prevention of terrorism?
- How should the Council respond to the support of terrorist organizations by states?
- What might be the importance of precautions before undertaking attacks by military power in another state?

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Topic B: Rise of terrorist organizations in the Middle East and Africa in 1998

Topic Introduction

Topic Introduction

The security situation in the international community became more complex in 1998, as Terrorist organisations became more prominent. Since the fall of the Soviet Union in 1991 there have been many changes to the security situation in the international community. This has led to several non-state actors using armed conflict to challenge national governments and the international community. This has been most apparent in some countries in the middle east and Africa. Where there has been political unrest and armed conflict, there have also been extremist networks that have allowed terrorist organisations to become more prominent.

One of the most prominent organisations was Al-Qaeda, founded in 1988 by Osama Bin Laden and other militant individuals who had fought in the Afghan resistance against the soviet union. By 1998 the organisation had become prominent on an international level, and had begun to target the United States and their allies. In February 1998 the leaders of Al-Qaeda issued a statement calling for attacks on American citizens and their allies.

On the 7 th August 1998 there were two almost simultaneous truck bomb attacks on the United States embassies in Nairobi, Kenya and Dar es Salaam, Tanzania. This resulted in the deaths of 224 people including 12 Americans. Over 4,500 people were injured; the majority were Kenyan and Tanzanians. This showed how effective Al-Qaeda could be when carrying out planned attacks on an international scale. The organisation became a significant threat to international security. It raised concerns about how terrorist organisations can carry out attacks across national borders, and gain funding and support. This also showed how vulnerable the security systems of nations are.

History of the Topic

Post-Cold War Security

The demise of the Soviet Union in 1991 led to a large shift within the international politics and security landscape. During the Cold War international security was focused on great

power rivalry and their respective military alliances. After the fall of the Soviet Union, international focus began to move towards regional conflicts, domestic instability and non-state armed groups.

There were many regions that had suffered due to weak government, civil war, economic hardship and political issues including the Middle East and Africa. This provided fertile ground for some extremist groups to develop networks, recruit new members, receive funding and cross borders.

The Soviet-Afghan War (1979-1989) also played a key role in the development of international extremist networks. Foreign fighters travelled to Afghanistan to fight during the conflict. Once the Soviets had left some of these individuals continued fighting and formed links with extremist groups. This helped create Al-Qaeda and other transnational movements.

The Rise of Al-Qaeda

Al-Qaeda was founded in 1988 by Osama bin Laden and other militants who had fought in the Afghan resistance against the Soviets. It originated in a network of groups supporting foreign fighters in Afghanistan. However, it started to develop more aims.

An international network formed during the early 1990s. Al-Qaeda would fund, provide logistical support, train and organise militant groups. Between 1991 and 1996, Osama bin Laden and a few of his associates were based in Sudan. They built up connections with funding and organisation. Bin Laden however left Sudan in 1996 due to pressure from the international community. He moved to Afghanistan which the Taliban now held much of the country.

In February 1998, bin Laden and other extremist leaders released a statement from the World Islamic Front for Jihad Against Jews and Crusaders. They announced an attack on American civilians, soldiers and their allies. This shows how the organisation wanted to expand internationally.

Al-Qaeda had become more involved with international terrorism by 1998. They carried out co-ordinated bombings on the American embassies in Kenya and Tanzania.

Armed Islamic Group – Algeria

Another key extremist group to appear in North Africa during the 1990's was the Armed Islamic Group (GIA) (French: Groupe Islamique Armé). This was formed in Algeria after the 1991 parliamentary elections were cancelled due to a huge victory in the Islamic Salvation Front. This led to political turmoil and created an armed conflict with the Algerian government and Islamist militant groups.

In 1992 the GIA began attacking the Algerian government. They became more targeted towards civilians, journalists, intellectuals and foreigners. During the mid to late 1990's they were responsible for many massacres, predominantly in rural areas. This shows how Terrorist groups can create threats to National Governments as well as Civilians and whole regions.

In 1998 there were disagreements within the group over the increasing random violence. This led to Hassan Hattab (one of the commanders) splitting off and forming his own group called the Salafist Group for Preaching and Combat (GSPC). This shows how extremist groups can split up and how difficult it is for Governments to wipe out the groups because they are able to regroup into smaller groups.

Islamist Militancy – Egypt

Egypt also saw a large amount of extremist violence during the 1990's. Two key groups were al-Gama'a al-Islamiyya (Islamic Group)and Egyptian Islamic Jihad. Both groups were against the Egyptian Government however they each had their own leadership.

Al-Gama'a al-Islamiyya attacked the Government through violence. They targeted Government workers, Security Forces and Civilians. One of the most well known attacks was on the 17 th November 1997 when militants killed 62 people in Luxor. This included Foreign Tourists. This attack received international criticism and placed more pressure on the Egyptian government to increase their anti-terrorism efforts.

During 1998 the Egyptians continued their efforts against extremist groups. Al-Gama'a al-Islamiyya was severely affected by Government activity. However there were still other militant groups active. This shows how domestic extremist groups can become international security threats. Especially when the members become connected to groups in other countries.

Current Situation

At the close of 1999, the danger posed by transnational terrorist networks continues to be significant, unpredictable, and pervasive. The terrorist attacks in East Africa have clearly demonstrated the security vulnerabilities around the world and confirmed that non-state groups have the ability to exploit weaknesses in state governments, porous borders, and local conditions such as poverty and instability to create a solid base.

The police in the East African countries of Kenya and Tanzania, along with international law-enforcement officials, are actively investigating the local terrorist infrastructure after the attacks which have damaged regional economies and destroyed tourism potential while highlighting limitations of anti-terror capabilities in developing countries. Such governments find it very difficult to maintain border security, manage informal financial flows, and protect their citizens without large amounts of foreign funding and assistance.

In Afghanistan, the Taliban government controls the country and shelters Osama bin Laden and the leadership of his Al-Qaeda network. Despite United Nations Security Council Resolutions 1214 and 1267, the Taliban refused to comply with the international demands for the surrender of bin Laden and closure of training camps. According to the Taliban, bin Laden is the guest of the Afghan government under its hospitality rules and demands official recognition of its government in exchange for any concessions.

However, the world community is divided in its efforts against transnational terrorism. The unilateral cruise missile strikes by the US in Sudan and Afghanistan under Operation Infinite Reach continue to cause legal and diplomatic controversy. Countries have to choose between sovereign rights under Article 2(4) of the United Nations Charter and right to self-defense under Article 51 for striking a non-state actor on the territory of another state. Meanwhile, Resolution 1267 has led to an attempt at the creation of multilateral and targeted sanctions, although implementation of asset freezes and travel bans in diverse financial and legal environments is not effective and allows non-state organizations to evade the sanctions.

Discussion of the Topic

Extraterritorial Self-Defense and State Sovereignty

An important question that the Security Council should answer in this case is what is the legal framework for military action against the non-state actors on the territory of the foreign, neutral or uncooperative state. States threatened by the transnational networks argue that

Article 51 of the United Nations Charter provides inherent right of self-defense through direct strike against terrorist safe havens when the host state is unwilling or unable to stop the threat. Meanwhile, the opposing member states argue that unauthorized military strikes against another country violate sovereign rights of that country under Article 2(4) and undermine the power of the Security Council which was created as the unique body which should authorize all military operations.

Safe Havens and State Responsibility

Transnational terrorist groups require safe havens for recruiting, training, planning, and conducting global terrorist operations. The Security Council has to address the problem of state responsibility in the cases when the host governments tolerate or even permit foreign terrorist groups on their territory. It will have to determine whether the failure or refusal of the state to dismantle terrorist infrastructure is the violation of international law and which types of enforcement, ranging from diplomatic isolation to binding Chapter VII sanctions, should be employed to force recalcitrant regimes, like the Taliban regime, to cooperate.

Disruption of Informal Financial Networks

These networks finance their activities through a combination of front companies, false charitable organizations, criminal organizations, and an informal unregulated money transfer system called hawala. The existing banking regulations and sanction system is often ineffective against the decentralized non-banking infrastructure of these networks. The Security Council will have to determine how to promote international financial transparency and curtail illegal financing of terrorists without undermining legitimate remittances and trade.

International Intelligence Co-operation

As terrorist organisations begin to carry out more international activity there has been a rise in increased co-operation between national intelligence and law enforcement agencies. Due to terrorist networks becoming active in multiple countries, intelligence gathered by one government can be key in stopping attacks occurring.

However there are many issues with intelligence co-operation. Often governments are unwilling to provide any sensitive information.

The Security Council should consider how international intelligence sharing can be improved whilst still keeping national security information private. Delegates should consider if the United Nations should promote a centralised intelligence database or if intelligence co-operation should remain between individual governments.

International Definition of Terrorism

One of the main issues with international anti-terrorism efforts is the differing definitions of terrorism. Many governments have historically defined armed organisations based on their political goals, methods and actions. Therefore an armed organisation may be seen as a terrorist group by one government but may not be seen in the same way by another.

This causes issues when trying to create international agreements, investigations and prosecutions.

The Security Council should consider if an international definition is needed to define terrorism. They should also consider what activities would be included within the definition. Finally they should consider how international law should differentiate between intentional attacks on civilians and armed conflict.

Human Rights and Protection of Civilians

With the increase in terrorist organisations, many governments have implemented increased security measures such as surveillance, incarceration, increased border security and increased police powers.Whilst these may help stop terrorist attacks, they can cause serious human rights issues.

Many countries suffering from extremist violence have had increased arrests, military actions and limitations on civilian activities as part of their anti-terrorism campaign. The international community should therefore consider how governments can protect their citizens whilst still maintaining basic human rights.

The Security Council should consider how important it is to have fair processes, to protect people from being incarcerated without reason and to treat civilians fairly during anti-terrorism operations. Delegates should consider if international monitoring could help ensure security measures are in line with international law.

Regional Co-operation and Prevention

As terrorist organisations often operate internationally it is very important to have regional co-operation. Individual governments may not have the resources, intelligence or capacity to deal with international extremist groups on their own.

Regional organisations can help co-ordinate security policies, intelligence sharing and help those countries suffering from political instability. In Africa there is already a framework in place with the Organisation of African Unity (OAU).

The Security Council should consider how international organisations and regional bodies can work together to stop terrorist activity. Delegates should consider if regional security treaties, investigations, training and technical support can help improve the capability of governments to deal with terrorism.

Block Positions

Country	Context
Bahrain	Regional stability and collaboration against extremist groups would be a priority for Bahrain. International security measures would be supported along with respect for countries' sovereignty. This shows how important it is for them to avoid any instability within the Middle East.
Brazil	Multilateralism, international law and peaceful conflict resolution are likely priorities for Brazil. Brazil will likely support international collaboration on investigations and enhanced agreements on countering terrorism however will be cautious of unilaterally using military force.
China	National sovereignty, territorial integrity and non-intervention will be key priorities for China. However international collaboration against terrorism will

	likely be supported. China will not support military operations without proper legal justification and international backing.
Costa Rica	Costa Rica would likely be in favour of using diplomacy and international law. They would want to encourage international legal agreements and cooperation between law enforcement agencies.
France	France would likely want to increase international intelligence, investigation and take down extremist groups. However, they would place a large emphasis on protecting diplomatic sites and preventing terrorist attacks whilst maintaining international legal standards.
Gambo	Gabon would likely want to increase security within the African region and cooperation between developing countries. They would want to provide international help to governments at risk from terrorism. They would want to increase regional institutions.
Gambia	The Gambia would likely want to increase international cooperation, regional security and support to developing countries. They would want to take action against international terrorism however would want to utilise diplomacy and respect national sovereignty.

Japan	Japan would likely want to increase international security, diplomacy and economic security. They would want to increaseinternational agreements, intelligence sharing and providing supportto countries effected by terrorism. They would favour peaceful solutions.
Kenya	Kenya would likely want to increase international cooperation to combat terrorism due to increased security threats in East Africa. They would want to increase intelligence sharing, protect diplomatic sites and provide international support to increase regional security.
Portugal	Portugal would likely want to increase multi-lateral diplomacy, international law and government cooperation. They would want to increase international agreements to improve investigations, prosecutions and prevent terrorist activity. They would want to ensure human rights are maintained.
Russia	Russia would likely want to increase strong government control, national security and international cooperation to target extremist groups. Due to their concerns around armed separatist movements they would want to increase intelligence sharing and increase international action against terrorist networks.
Slovenia	Slovenia would likely want to increase international cooperation, peaceful conflict resolution and international law. They would want to increase

	international institutions and encourage governments to work together to investigate and prevent terrorist activity.
Sweden	Sweden would likely place an emphasis on human rights, protection of the public and international cooperation. They would want to take action against terrorism but would want to ensure governments respect international humanitarian and human rights obligations.
United Kingdom	The United Kingdom would likely want to increase international cooperation to target terrorist groups. They would want to increase intelligence sharing, investigations and international agreements. They would want to work together to increase security and cooperate with the USA and affected African governments.
United States	The United States would want to prevent further international terrorist attacks. They would want to increase intelligence sharing, investigations and targeting of groups that threaten American interests. They would want to increase international agreements and would place an emphasis on international support and security cooperation with affected governments.

Relevant UN Treaties, Resolutions, and Reports

- United Nations Charter (1945): Provides basic structure for international law—maintaining international peace and security, equal sovereign equality under Article 2(4) and individual/collective right of self-defense under Article 51.

- International Convention for the Suppression of Terrorist Bombings (1997): Establishes a binding international mechanism for prosecution of those committing terrorist acts in form of criminalizing, investigating and prosecuting or extraditing those responsible for detonating bombs in public places or facilities belonging to states.

- UN Security Council Resolution 1214 (Dec 8, 1998): Expresses serious concern for terrorists in Afghanistan, calling Taliban to end sponsorship and training of terrorists and cooperate with handing indicted individuals to international tribunals.

- UN Security Council Resolution 1267 (Oct 15, 1999): Imposes binding Chapter VII sanctions on Taliban such as international flight ban and freezing assets and creates the 1267 Sanctions Committee to enforce compliance regarding Al-Qaeda and associated groups.

- UN Security Council Resolution 1269 (Oct 19, 1999): Condemns all acts of terrorism unconditionally as criminal and unjustifiable and urges states to adopt international counter-terrorism conventions and cooperate on intelligence and denying safe havens.

Previous Attempts to Resolve the Problem

Until late 1999, attempts to solve the problem of transnational terrorism focused on unilateral measures and domestic executive orders. Various states, especially the U.S., enacted decrees for freezing assets of terrorists' leaders and criminalizing any financial transactions with them. Although these national measures prevented access to domestic financial institutions, they did not prevent money flows in international informal networks and offshore financial centers (hawala). Without universal and binding international mechanisms, terrorist groups were able to redirect finances through non-complying states.

Recognizing the limitations of unilateral actions, the UN Security Council attempted to establish binding and multilateral sanctions through Resolution 1267 in October 1999. Through creating the Sanctions Committee and imposing sanctions in form of freezing assets and banning flights of Taliban, the UN created a modern non-military coercive mechanism under Chapter VII. However, this mechanism faced the following problem: its success totally depended on willingness of member states to comply with it and they did not possess necessary financial intelligence mechanisms or legislation for tracking informal finances and closing borders. As a result, the Security Council faced a task of development of universal enforcement mechanisms for implementation of multilateral sanctions.

Objectives of the Committee

The primary objective of the Committee for Topic B is coordination of binding and global effort to dismantle transnational terrorist networks after the August 1998 bombings of U.S. Embassies in Nairobi and Dar es Salaam. The delegates need to address the threats of non-state actors by cutting off sources of their financing (including informal networks such as hawala), denying them safe havens and creating efficient intelligence-sharing mechanisms under the UNSC Resolutions 1214 and 1267. Notably, the proposed solutions should be balanced between harsh multilateral counter-terrorism measures and respect for national sovereignty in the light of Article 2(4) of the UN Charter and self-defense provisions of Article 51. Based on the analysis of previous diplomatic pressure, sources and sponsors of regimes, and unilateral actions, the delegates need to develop realistic UN-based mechanisms of pushing state compliance, accountability of hostile regimes and maintenance of global peace and security.

Guiding Questions

- Is there a need for the Security Council to elaborate the universal definition of terrorism?

- Which actions should be classified as terrorist and which should not?

- Are there obligations of states not to allow their territory for use by terrorist organizations?

When can a country intervene militarily in another country to destroy terrorist camps?

Is there a need for the Security Council to support collective military actions or should it concentrate on law-enforcement and economic sanctions?

How to facilitate international intelligence cooperation to perform efficient surveillance while preserving national security and civil liberties?

How to guarantee that measures will not violate human rights?

Which role can development and state-building play in preventing terrorism?

How to respond to states sponsoring terrorism?

Why is there a need for precautionary measures before military intervention in another country?

Key Terms

1. Terrorism – The act or threat of using violence especially towards civilians creating fear to gain a political, ideological or religious coup.
2. Terrorist Organisation – Group using terrorist tactics in order to obtain certain political, ideological or religious aims.
3. Extremism – Extreme beliefs that defy that current political or social system and may promote violence as a means to obtain certain ideological goals.
4. Radicalisation – Becoming an individual with extreme beliefs. This may cause them to support or carry out acts of violence.
5. Non-State Actors – Individuals/organisations that are independent from the national government. They can have an impact on international issues.
6. Insurgency – Organised campaign carrying out armed resistance to dispute or overthrow the current government.
7. Transnational Terrorism – Acts of terrorism that take place across different countries.
8. Recruitment – Recruiting new members to join their organisation.
9. Safe Haven – Location allowing individuals carrying weapons or terrorism with minimal interruption from authority.
10. Intelligence Sharing – Carrying out exchanges of security information between Governments or intelligence organisations in order to find and prevent potential threats.
11. Counter- Terrorism – Measures taken by Governments and internationally to prevent, collect evidence and reaction to terrorism.
12. Sanctions – Measures put in place by countries and international organisations to frustrate Government or individuals into changing.
13. Extradition – Legally transferring an individual between countries to be tried for crime.
14. Jurisdiction – Authority legal authority given to different states/institutions to determine laws and power over individuals, areas or certain situations.
15. Sovereignty – Authority a state has over itself and controlling its territory.
16. International Co-operation – Different countries working together to overcome issues.
17. Human Rights – Basic rights each individual has no matter what nationals they are, what backgrounds they come from or what they believe.

18. Due Process – Procedures put in place to ensure individuals receive fair treatment from Government authorities. Especially when arrested and being prosecuted.
19. Multilateralism – Three or more countries working together to overcome international issues.
20. Arms Trafficking – Illegal trading, transporting and distributing of weapons.

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